

Madarsa Dargah Aaliya Islamiya Shareef Nagar & Anr. v. State of U.P. & 3 Others

Allahabad High Court · Division Bench · 17 August 2023 · 2023:AHC:165372-DB · WRIT - C No. 27499 of 2023 · **Writ petition disposed of (relegated to the authority under Clause 6.5B, U.P. Electricity Supply Code)**

HEADNOTE

A dispute over the quantification of an electricity demand raised by the licensee is to be examined by the authority concerned under Clause 6.5B of the U.P. Electricity Supply Code, which the writ petitioner may be permitted to approach for a reasoned determination of the objection, rather than the writ court adjudicating the correctness of the demand in the first instance.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5B

Dispute over the quantum of a demand notice is relegated to the authority under Clause 6.5B

QUESTION

Should a writ court adjudicate a challenge to the quantification of a demand notice (Rs. 6,91,850), or should the consumer be relegated to the authority prescribed under Clause 6.5B of the Supply Code?

HOLDING

The consumer is permitted to approach the authority concerned under Clause 6.5B of the Code, which must examine the objection raised as to quantification and pass a reasoned order within six weeks of presentation of a certified copy of the court's order. ¶ [unnumbered order](#)

LIMITING FACTS

The petitioner challenged a demand notice issued by the Prescribed Authority/Executive Officer, Electricity Distribution Division-3, Moradabad, disputing the amount claimed as due.

PRINCIPLE TAGS

clause-6.5b-quantification-dispute A dispute solely over quantification of a demand is relegated to the Clause 6.5B authority for a reasoned determination, rather than being adjudicated in writ jurisdiction. ¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE QUANTUM DEMANDED (RS. 6,91,850)

Not decided; relegated to the Clause 6.5B authority. ¶ [unnumbered order](#)